

UPSC INDIAN POLITY

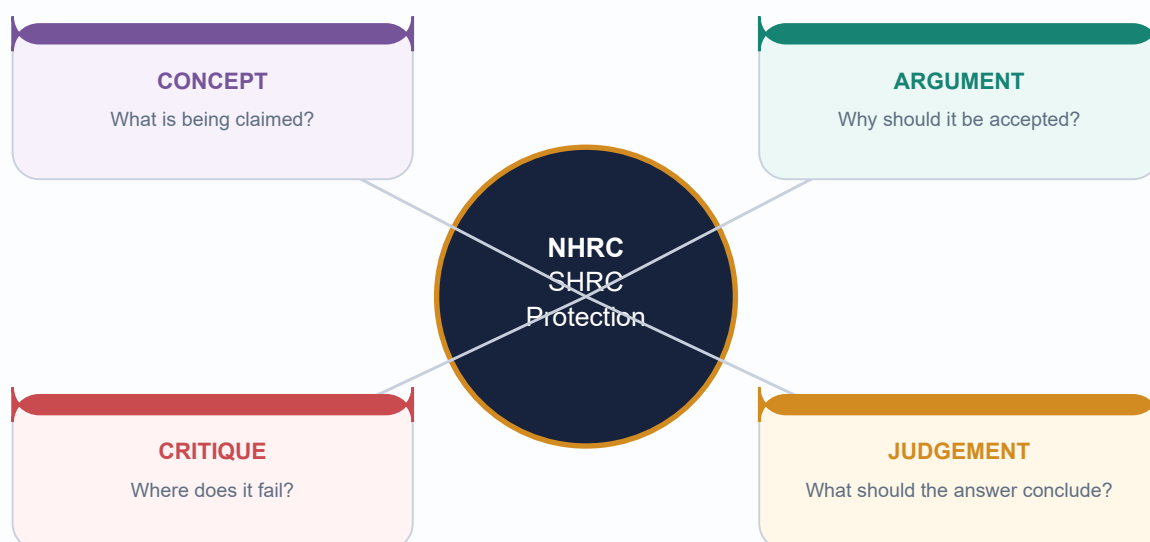
NHRC & SHRC (Protection of Human Rights Act, 1993) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: NHRC-and-SHRC.md + 35_NHRC-and-SHRC.md

Learning cards: 16



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS-II***Foundation learning layer: concepts → constitutional detail → UPSC application.*

STATIC THEORY

• greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/35_NHRC-and-SHRC.md.*

MEMORY HOOK

greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/35_NHRC-and-SHRC.md.*

MUST-KNOW FACTS

1. greater than = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/35_NHRC-and-SHRC.md.*

MAINS ANGLE

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Law	Protection of Human Rights Act, 1993
Nature	Statutory (not constitutional)
NHRC term	3 years or 70 years (post-2019)
NHRC chair	Retired CJI or SC judge
SHRC removal	By the President (not Governor)

MAINS ANGLE

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian
Polity

INTRO & ORIGIN

The **NHRC** is the statutory "**watchdog of human rights**" — it inquires into violations by public servants, visits jails, and promotes HR, but its recommendations are **advisory, not binding**, and it **cannot punish**. The 1993 Act **permits a state government to constitute** an SHRC for State/Concurrent List matters; it does not mean every state necessarily has a functioning commission.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

Dimension 1

The NHRC is the statutory "watchdog of human rights" — it inquires into violations by public servants, visits jails, and promotes HR, but its recommen

Dimension 2

greater than □ Statutory, not constitutional — 1993 Act.

Dimension 3

greater than □ SHRC: Governor appoints, President removes.
NHRC: can't touch cases older than 1 year.

STATIC THEORY

- greater than □ **Statutory, not constitutional** — 1993 Act.
- greater than □ **SHRC**: Governor appoints, **President removes**. **NHRC**: can't touch cases **older than 1 year**.

MEMORY HOOK

greater than Statutory, not constitutional — 1993 Act. | greater than SHRC: Governor appoints, President removes. NHRC: can't touch cases older than 1 year.

MAINS ANGLE

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** → Core idea

HIGH

Foundation · Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

- NHRC = chairperson + members + **7 ex-officio** (national commission chairs + Chief Commissioner PwD).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 ☐ NHRC = chairperson + members + 7 ex-officio (national commission chairs + Chief Commissioner PwD).	Dimension 2 ☐ Appointed by the President on a 6-member committee (PM head).
Dimension 3 ☐ Civil-court powers; own investigating staff; recommendations only — govt responds in 1 month.	Dimension 4 ☐ Armed forces: NHRC can only seek a report & recommend.

STATIC THEORY

- ☐ Appointed by the **President** on a **6-member committee** (PM head).
- ☐ **Civil-court powers**; own investigating staff; recommendations only — govt responds in **1 month**.
- ☐ **Armed forces**: NHRC can only seek a **report & recommend**.
- ☐ **Human Rights Courts** in each district (with HC Chief Justice's concurrence).

MUST-KNOW FACTS

1. NHRC = chairperson + members + **7 ex-officio** (national commission chairs + Chief Commissioner PwD).
2. Appointed by the **President** on a **6-member committee** (PM head).
3. **Civil-court powers**; own investigating staff; recommendations only — govt responds in **1 month**.
4. **Armed forces**: NHRC can only seek a **report & recommend**.
5. **Human Rights Courts** in each district (with HC Chief Justice's concurrence).

MAINS ANGLE

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** → Must-Know Facts

HIGH

Foundation • ☐ Current linkGS-II Indian
Polity

NEWS TRIGGER

☐ ☐ **Status checked 21 Jul 2026**: NHRC's official site continues to describe India as holding GANHRI **A-status** while the review cycle remains unresolved; no official downgrade decision has been published. Independence, pluralism and reliance on police investigators remain reform concerns, but a proposed/recommended downgrade must not be reported as an accomplished fact.

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** → ☐ Current link

HIGH

Advanced • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity • **Tier:** Advanced (exam depth) • **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1 greater than Subject: Polity • Tier: Advanced (exam depth) • GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 55–56 (direct check of the local Sixth Revised Edition PDF) + official updates.
Dimension 3 greater than □ = from source book • □□ = inference / analysis • □ = current affairs.	Dimension 4 greater than Companion: basic/NHRC-and-SHRC.md.

STATIC THEORY

- greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 55–56 (direct check of the local Sixth Revised Edition PDF) + official updates.
- greater than □ = from source book • □□ = inference / analysis • □ = current affairs.
- greater than *Companion: basic/NHRC-and-SHRC.md.*
- greater than
- greater than □□ **Note:** NHRC & SHRC are **statutory** bodies (Protection of Human Rights Act, 1993) — **NOT constitutional**.

MUST-KNOW FACTS

1. greater than = from source book • □□ = inference / analysis • □ = current affairs.

MAINS ANGLE

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** → Core Foundation

HIGH

Advanced • PART A — NHRC □

GS-II Indian
Polity

INTRO & ORIGIN

□ **Statutory body** established **1993** under the **Protection of Human Rights Act, 1993** — the "**watchdog of human rights**" (life, liberty, equality, dignity per the Constitution & international covenants). HQ: **Delhi**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **Statutory body** established **1993** under the **Protection of Human Rights Act, 1993** — the "**watchdog of human rights**" (life, liberty, equality, dignity per the Constitution & international covenants). HQ: **Delhi**.

MAINS ANGLE**STUDY LINK**

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** →
PART A — NHRC □

HIGH**Advanced · Composition (post-2019 Amendment)** □GS-II Indian
Polity**INTRO & ORIGIN**

Structured comparison from the advanced source layer.

KEY DATA

Point	Detail
□ Chairperson	A retired CJI OR a retired Supreme Court judge (widened by the 2019 Amendment)
□ Members	1 serving/retired SC judge + 1 serving/retired HC chief justice + 3 persons with HR knowledge (≥1 woman)
□ Ex-officio members	7 — chairpersons of the National Commissions for Minorities, SCs, STs, Women, BCs, Protection of Child Rights + Chief Commissioner for Persons with Disabilities
□ Term	3 years or 70 years , whichever earlier (reduced from 5 yrs by 2019 Amdt); re-appointment allowed

MAINS ANGLE**STUDY LINK**

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** →
Composition (post-2019 Amendment) □

HIGH**Advanced · Appointment & removal**GS-II Indian
Polity**INTRO & ORIGIN**

□ Appointed by the **President** on a **6-member committee's** recommendation: **PM (head), LS Speaker,**

Advanced learning layer: concepts → constitutional detail → UPSC application.

APPOINTMENT & REMOVAL: RECALL MAP

Appointment & removal	
Dimension 1 ☐ Appointed by the President on a 6-member committee's recommendation: PM (head), LS Speaker,	Dimension 2 RS Deputy Chairman, LoP of both Houses, Union Home Minister.
Dimension 3 ☐ Removed by the President; for proved misbehaviour/incapacity, a Supreme Court inquiry is required	Dimension 4 (advice binding).

STATIC THEORY

- RS Deputy Chairman, LoP of both Houses, Union Home Minister.
- ☐ Removed by the **President**; for **proved misbehaviour/incapacity**, a **Supreme Court inquiry** is required
- (advice binding).

MUST-KNOW FACTS

1. Appointed by the **President** on a **6-member committee's** recommendation: **PM (head)**, **LS Speaker**,
2. Removed by the **President**; for **proved misbehaviour/incapacity**, a **Supreme Court inquiry** is required

MAINS ANGLE

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** → Appointment & removal

HIGH

Advanced · Functions & limitations ☐ ☐

GS-II Indian Polity

INTRO & ORIGIN

☐ Inquire (suo motu / on petition / court order) into HR violations by public servants; intervene in court proceedings; **visit jails**; review safeguards; promote research & literacy; encourage NGOs.

Advanced learning layer: concepts → constitutional detail → UPSC application.

FUNCTIONS & LIMITATIONS ☐ ☐: RECALL MAP

Functions & limitations ☐ ☐	
Dimension 1 ☐ Inquire (suo motu / on petition / court order) into HR violations by public servants; intervene in court proceedings; visit jails; review safeguards	Dimension 2 ☐ Powers of a civil court; has its own investigating staff.
Dimension 3 ☐ ☐ Two big limitations: (1) cannot inquire into a matter greater than 1 year old; (2) recommendations are	Dimension 4 advisory, NOT binding — it cannot punish or award relief (only recommends compensation/prosecution, or approaches the SC/HC for writs). Government must

STATIC THEORY

- ☐ **Powers of a civil court**; has its **own investigating staff**.
- ☐ **Two big limitations**: (1) **cannot inquire** into a matter **greater than 1 year old**; (2) recommendations are
- **advisory, NOT binding** — it **cannot punish** or award relief (only **recommends** compensation/prosecution, or approaches the SC/HC for writs). Government must respond within **1 month**.
- ☐ **Armed-forces limitation**: in respect of the armed forces, it can only seek a **report** from the Centre and
- make recommendations.

MUST-KNOW FACTS

1. Inquire (suo motu / on petition / court order) into HR violations by public servants; intervene in court proceedings; **visit jails**; review safeguards; promote research & literacy; encourage NGOs.
2. **Powers of a civil court**; has its **own investigating staff**.

MAINS ANGLE

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** → Functions & limitations ☐

HIGH

Advanced • PART B — SHRC ☐

GS-II Indian
Polity

INTRO & ORIGIN

- ☐ **State Human Rights Commission** — a state government may constitute one under the 1993 Act; establishment and operational status vary, so no volatile national count is asserted here.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART B — SHRC ☐: RECALL MAP

PART B — SHRC ☐

Dimension 1 ☐ State Human Rights Commission — a state government may constitute one under the 1993 Act; establishment and operational status vary, so no volatile	Dimension 2 ☐ Jurisdiction: only State List (II) & Concurrent List (III) subjects; not if the NHRC/another
Dimension 3 statutory commission is already seized of the case.	

STATIC THEORY

- ☐ **Jurisdiction**: only **State List (II) & Concurrent List (III)** subjects; **not** if the NHRC/another
- statutory commission is already seized of the case.

MUST-KNOW FACTS

- 1. State Human Rights Commission** — a state government may constitute one under the 1993 Act; establishment and operational status vary, so no volatile national count is asserted here.
- 2. Jurisdiction:** only **State List (II) & Concurrent List (III)** subjects; **not** if the NHRC/another

MAINS ANGLE**STUDY LINK**

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** →
PART B — SHRC □

HIGH**Advanced · Composition (post-2019)**GS-II Indian
Polity**INTRO & ORIGIN**

Structured comparison from the advanced source layer.

KEY DATA

Point	Detail
□ Chairperson	A retired HC Chief Justice OR a HC judge
□ Members	1 serving/retired HC judge or District Judge (≥7 yrs) + 1 HR expert
□ Appointed by	Governor (committee: CM (head) , Assembly Speaker, State Home Minister, LoP; +Council chair/LoP if bicameral)
□ Removed by	PRESIDENT (NOT the Governor!) — same grounds as NHRC
□ Term	3 years or 70 years

MAINS ANGLE**STUDY LINK**

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** →
Composition (post-2019)

HIGH**Advanced · Composition (post-2019)**GS-II Indian
Polity**INTRO & ORIGIN**

- **Key trap:** SHRC members are **appointed by the Governor but removable only by the President**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ **Human Rights Courts:** the Act provides for a **Human Rights Court in each district** (set up by the state govt with the **HC Chief Justice's concurrence**) for speedy trial.

MUST-KNOW FACTS

1. Human Rights Courts: the Act provides for a **Human Rights Court in each district** (set up by the state govt with the HC Chief Justice's concurrence) for speedy trial.

MAINS ANGLE**STUDY LINK**

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** → Composition (post-2019)

HIGH**Advanced · UPSC Traps****GS-II** Indian Polity**INTRO & ORIGIN**

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: NHRC/SHRC are constitutional bodies

CORRECT: **statutory** (1993 Act).

WRONG: NHRC recommendations are binding

CORRECT: **advisory only**; NHRC **cannot punish** or grant relief.

WRONG: NHRC can inquire into any old case

CORRECT: only within **1 year** of the violation.

WRONG: SHRC members are removed by the Governor

CORRECT: removed **only by the President**.

WRONG: NHRC chairperson must be a retired CJI only

CORRECT: after **2019**, a retired **SC judge** also qualifies.

WRONG: NHRC term is 5 years

CORRECT: reduced to **3 years** (2019 Amendment).

WRONG: NHRC can fully investigate the armed forces

CORRECT: only seek a **report** & recommend.

MAINS ANGLE**STUDY LINK**

NHRC & SHRC (Protection of Human Rights Act, 1993) — **ADVANCED / COMPLETE** → UPSC Traps

HIGH

Advanced • CA hooks

GS-II Indian
Polity

NEWS TRIGGER

□ □ **GANHRI status checked 21 Jul 2026:** NHRC's official portal continues to describe India as holding **A-status** while the latest review cycle remains unresolved; no final official downgrade decision has been published. Independence, pluralism and use of police investigators remain reform concerns, but a recommendation/review is not a completed downgrade. □ □ □ Debate on NHRC's "**toothless tiger**" advisory nature and demands to make recommendations enforceable.

INTRO & ORIGIN

Exam-ready treatment of □ CA hooks.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced • Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The NHRC is a recommendatory watchdog without teeth." Examine, referencing the GANHRI downgrade concerns. Reforms needed to align the NHRC with the **Paris Principles** (independence, pluralism, transparency). Should the 1-year limitation on NHRC inquiries be removed?

STUDY LINK

NHRC & SHRC (Protection of Human Rights Act, 1993) — ADVANCED / COMPLETE → Mains angles

End of Register Notes — UPSC Agent / Copilot CLI